

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Purchased:

-----X
OSMANY CEBRECO,

Plaintiff designates NEW YORK
County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose and where plaintiff resides.

-against-

THE CITY OF NEW YORK, JOHN GUNN P.O. OF
THE 33 PCT., SHIELD #4834, TAX ID #956708,
OTHER NEW YORK CITY POLICE OFFICERS
INVOLVED IN CLAIMANT'S ARREST UNDER
DOCKET #2017NY014169 WHOSE NAMES ARE
NOT KNOWN AT THIS TIME N/H/A JOHN/JANE
DOE I-IV, AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON JANUARY 27, 2017, AND NO
OTHER DATE,

SUMMONS

Plaintiff resides at

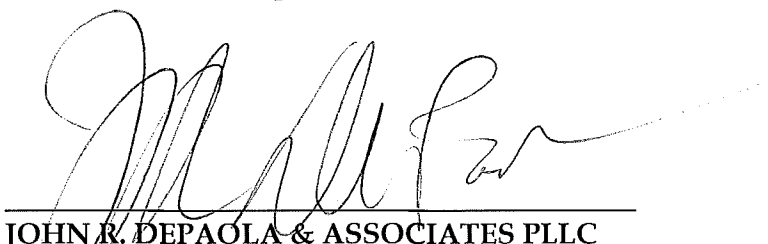
OSMANY CEBRECO
502 West 180th Street
New York, New York 10033

Defendants.
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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
July 31, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

JOHN GUNN P.O. OF THE 33 PCT.

SHIELD #4834, TAX ID #956708

2207 Amsterdam Avenue
New York, New York 10032

SUPREME COURT OF THE STATE OF NEW YORK Index No.:
COUNTY OF NEW YORK

-----X
OSMANY CEBRECO,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JOHN GUNN P.O. OF THE
33 PCT., SHIELD #4834, TAXID #956708, OTHER NEW
YORK CITY POLICE OFFICERS INVOLVED IN
CLAIMANT'S ARREST UNDER DOCKET
#2017NY014169 WHOSE NAMES ARE NOT KNOWN
AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
JANUARY 27, 2017, AND NO OTHER DATE,

Defendants.

-----X

OSMANY CEBRECO, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

1. At all times mentioned, Plaintiff, **OSMANY CEBRECO** was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 6th day of December, 2017, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and

manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which some of the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant, **CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

AS AND FOR A FIRST CAUSE OF ACTION

7. On or about January 27, 2017, at approximately 2:00 P.M., in the vicinity of 167th Street and Amsterdam Avenue, which the police state occurred inside 501 West 167th Street, County of New York, State of New York the Defendants, **JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID**

#956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, OSMANY CEBRECO, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about January 27, 2017, at approximately 2:00 P.M., in the vicinity of 167th Street and Amsterdam Avenue, which the police state occurred inside 501 West 167th Street, County of New York, State of New York, the Defendants, JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, jointly and severally did place Plaintiff, OSMANY CEBRECO, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions

placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about January 27, 2017, at approximately 2:00 P.M., in the vicinity of 167th Street and Amsterdam Avenue, which the police state occurred inside 501 West 167th Street, County of New York, State of New York the Defendants, **JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty, and then took him into custody to a police station in the County of New York and there charged him with the crimes on Docket No. 2017NY014169. The Plaintiff was issued a Desk Appearance Ticket that when he was arraigned on it bail of \$2,500 was set and later Plaintiff was remanded to INS Custody for a few hours on his last day in custody. He was in custody over the course of approximately four (4) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his

confinement. The police in this case had no right to interrogate, question or search the tool bag the Plaintiff was carrying with him, as they had no idea if Plaintiff was a resident of the building or whether he was a guest of any resident of the building. The Plaintiff was on his way to see the superintendent who resided in the basement apartment. At the time there was no "no trespassing" sign. The Plaintiff told the police he was there to see the superintendent because he was going to do some work for him, and asked the officer to speak to the superintendent in case they wanted to corroborate his story, but the officer never bothered to do so. While in custody of the police and other City of New York employees the Plaintiff was subjected to multiple strip-searches with cavity inspections.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about January 27, 2017, at approximately 2:00 P.M., in the vicinity of 167th Street and Amsterdam Avenue, which the police state occurred inside 501 West 167th Street, County of New York, State of New York the Defendants, **JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned

the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility and/or police jail. The Plaintiff was thereafter taken to a police station where he was given a Desk Appearance Ticket and then was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. When Plaintiff returned for his arraignment bail of \$2,500 was set and Plaintiff stayed in custody for four (4) days. The police in this case had no right to interrogate, question or search the tool bag the Plaintiff was carrying with him, as they had no idea if Plaintiff was a resident of the building or whether he was a guest of any resident of the building. The Plaintiff was on his way to see the superintendent who resided in the basement apartment. At the time there was no "no trespassing" sign. The Plaintiff told the police he was there to see the superintendent because he was going to do some work for him, and asked the officer to speak to the superintendent in case they wanted to corroborate his story, but the officer never bothered to do so. While in custody of the police and other City of New York employees the Plaintiff was subjected to multiple strip-searches with cavity inspections.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Upon information and belief, on or about January 27, 2017, at approximately 2:00 P.M., and from that time until the dismissal of charges on or about September 14, 2017 which was a favorable termination for the Plaintiff, by the Honorable H. Moses at New York County Supreme Court, Part C, Defendants, JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, deliberately and maliciously prosecuted Plaintiff, OSMANY CEBRECO, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, New York County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2017NY014169 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances

to defend his liberty against these unjust charges. The Plaintiff was initially given a Desk Appearance Ticket and released after five to six (5-6) hours in custody. He was then released for a later court date to be arraigned on the charges at his arraignment bail was set of \$2,500 which he could not initially make. Plaintiff was detained at the Manhattan Detention Center (Tombs) and Riker's Island C-95. Plaintiff was illegally stopped, questioned, searched and then arrested by the police when they had no search warrant, arrest warrant, consent of the Plaintiff or probable cause to do so. In violation of *People v. De Bour*, 40 N.Y.2d 210 (1976); the police had no right to stop or question the Plaintiff as they had no information to believe Plaintiff was not a resident or guest of a of resident of the building. The police had no right to ask what was in Plaintiff's tool bag or ask him to open it and view its contents. The Plaintiff had legal cause to be at the building as he was going to do work at the building for the building superintendent. The police in their complaint misspoke, suppressed exculpatory evidence as they were expressly told by the Plaintiff he was there at the behest of the building superintendent to do work at the building and this was evidenced by his tool bag which the police ordered him to open and the police without legal cause or the consent of the Plaintiff did a visual search of the Plaintiff's tool bag which revealed tools and no contraband.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants, **JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff, **OSMANY CEBRECO**, is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.
24. On or about January 27, 2017, at approximately 2:00 P.M., in the vicinity of 167th Street and Amsterdam Avenue, which the police state occurred inside 501 West 167th Street, County of New York, State of New York, the Defendants, **JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE**

NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, armed police, while effectuating the seizure of the Plaintiff, OSMANY CEBRECO, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against his person, as well as Plaintiff was maliciously prosecuted without the Defendants possessing probable cause to do so. The named officers in the caption of the complaint acted in concert in falsely arresting and maliciously prosecuting the Plaintiff. The police officer who initiated the prosecution of the Plaintiff was JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, who signed the criminal court complaint against the Plaintiff. The named Officer and those named as, JOHN/JANE DOE I-IV assisted in the investigation that led to the arrest and prosecution of the Plaintiff. The officer grabbed the person of the Plaintiff and handcuffed him. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. It should be noted the Defendants had no information to stop Plaintiff and ask him to open his tool bag, visually search nor ask him about his residency. The police had no reasonable belief to be believe the Plaintiff did not reside in the building or have a legal right to be there. At no time were there conspicuous signs that this was a clean Halls Building and there was to be no "no trespassing" signs at the building. The police at the time they stopped the Plaintiff had no information regarding

who lived at the building. While in police custody and department of correction custody the Plaintiff was subjected to a strip search with a cavity inspection on multiple occasions even though the police or other City employees had no information or evidence that the Plaintiff ever secreted contraband on his person or made movements which would lead a reasonable person to believe he ever secreted contraband on or in his person.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution.
- f. Freedom from the use of excessive force during the arrest process;
- g. Freedom from unlawful imprisonment;
- h. Freedom from loss of his liberty.
- i. Freedom from being illegally strip-searched with a cavity inspection multiple times while at the Manhattan Detention Center and Riker's Island and C-95 on Riker's Island.

26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant, **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. THE CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested or searched and seized.
 2. Excessive force cannot be used against an individual who does not physically resist arrest by placing the handcuffs too tight.
 3. No individual should be searched, seized or arrested except for the violation of *People v. De Bour*, 40 N.Y.2d 210 (1976).
32. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.
34. Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY

OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

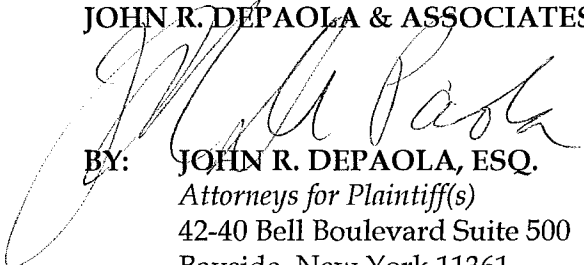
WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
July 31, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:


JOHN R. DEPAOLA, ESQ.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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OSMANY CEBRECO,

Plaintiff,

-against-

VERIFICATION

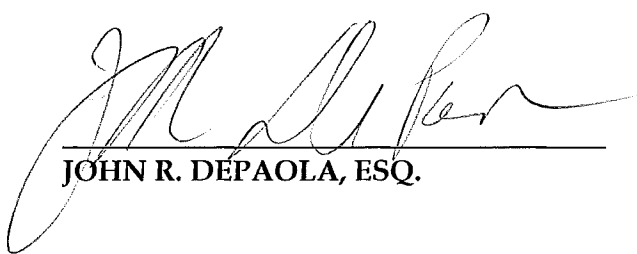
THE CITY OF NEW YORK, JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAXID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JANUARY 27, 2017, AND NO OTHER DATE,

Defendants.
-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
July 31, 2018



JOHN R. DEPAOLA, ESQ.

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

OSMANY CEBRECO,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOHN GUNN P.O. OF THE 33 PCT., SHIELD #4834, TAX ID #956708, OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN CLAIMANT'S ARREST UNDER DOCKET #2017NY014169 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JANUARY 27, 2017, AND NO OTHER DATE,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for